

Franciscus Dylan Rosario
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

Subhi Abdelhalim; CSAA Insurance Exchange; Phillips,
Spallas & Angstadt LLP; Priya D. Navaratnasingham;
Alberto Reyna; Michael R. Chambers; Carbone, Smith &
Koyama; and Does 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**NOTICE OF RULING ON PLAINTIFF'S
EX PARTE APPLICATION TO STAY
MOTION TO STRIKE**

(Cal. Rules of Court, rule 3.1312; LRSF 8.4; Code Civ.
Proc., § 1019.5)

Ex Parte Hearing:

Date: April 24, 2026

Time: 11:00 a.m.

Dept.: 301

Judge: Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

NOTICE

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on **April 24, 2026, at approximately 11:00 a.m.**, the Honorable Christine Van Aken, presiding in Department 301 of the San Francisco Superior Court, heard and ruled upon Plaintiff Franciscus Dylan Rosario's Ex Parte Application to Stay Defendants' Motion to Strike Pending Ruling on Plaintiff's Motion for Leave to File Second Amended Complaint. The Court ruled as follows:

RULING

[X] DENIED — The Court denied Plaintiff's ex parte application.

Substance of the Court's stated reasoning (recited by Plaintiff under Code Civ. Proc. § 2015.5; pending availability of the reporter's transcript):

The Court indicated that a separate stay of the pending Motion to Strike was unnecessary because the substance of the proposed Second Amended Complaint — including the sufficiency and scope of its allegations — will be addressed at the hearing on Plaintiff's Motion for Leave to File Second Amended Complaint, currently set for **May 6, 2026, at 9:00 a.m. in Department 301**. In effect, the Court identified the May 6, 2026 hearing as the vehicle at which the details of the Second Amended Complaint will be discussed and covered, rendering separate ex parte relief unnecessary at this time.

No written order was issued on the record; this Notice of Ruling is given pursuant to California Rules of Court, rule 3.1312(a) and Code of Civil Procedure section 1019.5(a), and summarizes the oral ruling made in open court. Plaintiff has requested and will, if obtained, lodge a reporter's transcript of the April 24, 2026 ex parte hearing as a supplement to this Notice. If any party contends the foregoing recitation is inaccurate or incomplete, that party is invited to submit a corrective notice pursuant to rule 3.1312.

DECLARATION OF PLAINTIFF (CCP § 2015.5)

I, Franciscus Dylan Rosario, declare:

1. I am the plaintiff in pro per in this action. I have personal knowledge of the facts stated herein and, if called as a witness, could and would testify competently thereto.
2. I personally appeared at the April 24, 2026, 11:00 a.m. ex parte calendar in Department 301 of the San Francisco Superior Court, Hon. Christine Van Aken presiding.
3. The Court heard my Ex Parte Application to Stay Defendants' Motion to Strike pending ruling on my Motion for Leave to File Second Amended Complaint.
4. The Court denied the application. In substance, the Court stated that the details of the proposed Second Amended Complaint — including the sufficiency and scope of its allegations — will be discussed and covered at the hearing on my Motion for Leave to File Second Amended Complaint, set for May 6, 2026, at 9:00 a.m. in Department 301.
5. The recitation in the RULING section above accurately reflects, to the best of my present recollection, the substance of the Court's oral ruling. The recitation is a substantive summary, not a verbatim transcript; a reporter's transcript will control if it becomes available.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 24, 2026, at Rohnert Park, California.

SERVICE OF THIS NOTICE

Pursuant to California Rules of Court, rule 3.1312 and LRSF 8.4, this Notice of Ruling is served on all parties of record by electronic service on the date set forth below, at the e-service addresses of record: ctapp@porterscott.com; toconnell@porterscott.com; mschubert@porterscott.com.

NOTE TO CLERK: Plaintiff is proceeding in propria persona with a fee waiver granted December 23, 2025 under Government Code section 68634(e) and is excluded from mandatory e-filing under LRSF 2.11 / CRC 2.253(a)(3). Filed at Room 103.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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